

CV-23-001227 CARSON HYBRID ENERGY STORAGE LLC vs TURLOCK IRRIGATION DISTRICT – Plaintiff’s Motion to Compel Witness, Utilities System Efficiencies, Inc. to Comply with a Deposition Subpoena for Production of Business Records; and Request for Sanctions in the Amount of \$1,460 – DENIED, without prejudice.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Civ. Proc. Code § 2025.450 authorizes a party who serves a deposition notice for an order compelling the deponent's attendance and testimony, or tangible thing described in the deposition notice to move to compel the deponent's attendance when the deponent fails to appear for the deposition without having saved a valid objection. However, said Motion to Compel must be accompanied by a separate statement which "provides all the information necessary to understand each discovery request and all the responses to it that are at issue". CA ST CIVIL RULES Rule 3.1345. Plaintiff's motion fails to comply with this requirement. Plaintiff also fails to address in any of its moving papers the basis for its entitlement to the requested deposition and the requested documents. Good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. (Townsend v. Superior Court(EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court(Cimm's, Inc.) (1998) 67 Cal.App.4th 424). A reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Clement v. Alegre (2009) 177 Cal. App. 4th 1277). The court therefore finds that Plaintiff's brief and perfunctory meet and confer letter sent the day prior to the filing of this motion does not meet the stated requirements. Civ. Proc. Code § 2016.040 (a). Accordingly, Plaintiff's motion is hereby denied without prejudice.

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